

IN THE SUPERIOR COURT

BRIGHTLEAF MARKETS, INC., *Plaintiff,*

v.

LEDGERWOOD REFRIGERATION SERVICES, INC., *Defendant.*

COMPLAINT —EXCERPT

Filed February 13, 2026

Counsel for Plaintiff: Thayer & Rounsaville LLP (I. Rounsaville)

12. At all relevant times Defendant was engaged under service agreement SA-2019-4412 to maintain refrigeration systems at Plaintiff's Millbrook store, Store 14, including the compressor rack designated B-3 serving the frozen food line and the backroom walk-in freezer.

13. The Millbrook backroom walk-in freezer served as Plaintiff's regional frozen transfer hub for eleven stores, a fact known to Defendant.

14. On May 12, 2021, Plaintiff notified Defendant of a problem with Rack B-3. That notification is recorded in Defendant's own service management system as work order WO-114872, bearing a First Reported date of May 12, 2021. Prior to that date, Defendant's records reflect no report of any problem with Rack B-3.

15. Defendant attended on May 14, 2021, diagnosed a failed discharge valve, and determined that the valve plate wear was "not recent."

16. Notwithstanding that finding, Defendant performed no repair. Rack B-3 failed totally on August 18, 2021.

17. Plaintiff has suffered damages as follows:

Product spoilage, March 2020 through August 17, 2021	\$1,340,000
Product loss, August 18, 2021	\$1,920,000
Business interruption and emergency transfer	\$490,000
Consequential damages	\$350,000
Total	\$4,100,000

18. Plaintiff pleads in the alternative that Defendant's failure to act between May 12, 2021 and August 18, 2021 was the proximate cause of the total failure, and that Defendant's failure to detect the condition during quarterly preventive maintenance visits constitutes a breach of §4.1 of SA-2019-4412.